



CHAPTER cxxix.

An Act to incorporate the Selsey Water Company and to enable that Company to supply water in certain parishes in the county of Sussex. A.D. 1907.
[9th August 1907.]

WHEREAS the affording of a supply of water by the Company herein-after referred to to the parishes of Selsey Sidlesham North Mundham and Hunston in the county of Sussex as by this Act provided would be of public and local advantage :

And whereas the persons in that behalf in this Act named with others are willing on being incorporated into a company with the necessary powers for such purpose to undertake the supply of water to such parishes and places and it is expedient that they should be incorporated accordingly and that such other powers as are in this Act contained should be conferred on them for the better and more effectually carrying the purposes of this Act into effect :

And whereas the parishes of Selsey Sidlesham and Hunston are within the limits of supply of the mayor aldermen and citizens of the city of Chichester (in this Act referred to as "the corporation") as defined by the Chichester Corporation Water Act 1897 :

And whereas the corporation have agreed to give to the Company and the Company have agreed to take from the corporation a supply of water upon the terms and conditions set forth in the agreement contained in the schedule to this Act and it is expedient that the said agreement should be confirmed and made binding :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

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May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title

1. This Act may be cited for all purposes as the Selsey Water Act 1907.

Incorporation of general Acts.

2. The following Acts and parts of Acts (so far as they are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely) The Companies Clauses Consolidation Act 1845 (except the provisions relating to the conversion of borrowed money into capital) Part I. (relating to cancellation and surrender of shares) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts the Lands Clauses Acts (except the provisions of the Lands Clauses Consolidation Act 1845 with respect to the purchase and taking of lands otherwise than by agreement) the Waterworks Clauses Acts 1847 and 1863 (except sections 6 to 27 of the former Act and the words in section 44 of that Act "with the consent in writing" of the owner or reputed owner of any such house or of the "agent of such owner").

Interpretation.

3. In this Act the several words and expressions hereinafter mentioned have the meanings hereby assigned to them unless there be something in the subject or context repugnant to such construction (that is to say):—

Words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings;

The expression "the Company" means the Company incorporated by this Act.

Company incorporated.

4. Francis Hill Tod Alfred Stansfeld and Henry William Ingram and all other persons who have already subscribed to or shall hereafter become proprietors in the undertaking and their executors administrators successors and assigns respectively shall be and are hereby united into a Company for the purposes of this Act and for those purposes shall be and are hereby incorporated by the name of "The Selsey Water Company" and by that name shall be a body corporate with perpetual succession and a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Act.

5. The Company shall be established for the purpose of the supply of water within the limits of this Act and may sell dispose of and deal in water and generally may carry on the business usually carried on by water companies.

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General pur-
poses of
Company.

6. The capital of the Company shall be fifteen thousand pounds in one thousand five hundred shares of ten pounds each.

Capital.

7. The Company shall not issue any share created under the authority of this Act nor shall any such share vest in the person accepting the same unless and until a sum not being less than one-fifth of the amount of such share is paid in respect thereof.

Issue of
shares.

8. One-fifth of the amount of a share shall be the greatest amount of a call and two months at least shall be the interval between successive calls and one-fifth of the amount of a share shall be the utmost aggregate amount of the calls made in any year upon any share.

Calls.

9. The Company may from time to time borrow on mortgage of the undertaking any sums not exceeding in the whole five thousand pounds in respect of the capital by this Act authorised or they may (subject to the conditions herein-after contained) borrow from time to time not exceeding one thousand pounds in respect of each portion of capital not exceeding three thousand pounds issued by the Company but no part of any such sum shall be borrowed until the whole capital or respective portion of capital in respect of which it is to be borrowed is issued and accepted and one half thereof is paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that the whole of such capital or portion of capital has been issued and accepted and that one half thereof has been paid up and that not less than one-fifth part of the amount of each separate share in such capital or portion of capital has been paid on account thereof before or at the time of the issue or acceptance thereof and that such capital or portion of capital was issued bonâ fide and is held by the persons or corporations to whom the same was issued or their executors administrators successors or assigns and that such persons or corporations their executors administrators successors or assigns are legally liable for the same and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which shall be sufficient evidence thereof.

Power to
borrow.

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For appoint-
ment of a
receiver.

10. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five hundred pounds in the whole.

Receipt in
case of per-
sons not sui
juris.

11. If any money is payable to a shareholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge of the Company.

Debenture
stock.

12. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Application
of moneys.

13. All moneys raised under this Act whether by shares debenture stock or borrowing shall be applied only for the purposes of this Act to which capital is properly applicable.

First ordi-
nary meeting.

14. The first ordinary meeting of the Company shall be held within six months after the passing of this Act.

Number of
directors.

15. The number of directors shall be five but the Company may vary the number provided that the number be not at any time more than seven or less than three.

Qualification
of directors.

16. The qualification of a director shall be the possession in his own right of not less than twenty shares.

Quorum.

17. The quorum of a meeting of directors shall be three.

Directors.

18. Luther Clayton Edwin Richard Painter and William Bentham Martin and any two other persons to be nominated by them or the majority of them and consenting to such nomination shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this

Act At that meeting the shareholders present in person or by proxy may either continue in office the directors appointed by this Act or nominated as aforesaid or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act or nominated as aforesaid being if they continue qualified eligible for re-election and at the first ordinary meeting to be held in every year after the above-mentioned first ordinary meeting the shareholders present in person or by proxy shall (subject to the power herein-before contained for varying the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are elected in their stead.

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19. The limits of this Act for the supply of water shall be the parishes of Selsey Sidlesham North Mundham and Hunston in the county of Sussex which limits are in this Act referred to as "the water limits" Provided that the Company shall not supply water in any part of the parish of North Mundham without the previous consent in writing of the Bognor Water Company.

Limits of
Act for
water pur-
poses.

20. The agreement made between the corporation and certain persons as trustees for and on behalf of the Company as set forth in the schedule to this Act is hereby confirmed and made binding on the corporation and the Company and shall be carried into effect accordingly.

Confirmation
of agree-
ment with
Chichester
Corporation.

21. All payments due from the Company to the corporation in respect of the water provided in bulk by the corporation under the provisions of the agreement contained in the schedule to this Act and by this Act confirmed for the purposes of the supply by the Company of such water for domestic purposes and purposes other than domestic within the water limits shall be deemed to be part of the working expenses of the Company and outgoings proper to be made before payment of interest on mortgage bonds or debenture stock or the determination of profits available for dividend and shall as such be dealt with and accounted for by the Company.

As to pay-
ments by
Company to
Chichester
Corporation
for water.

22. If at any time after the expiration of three years from the passing of this Act the Company are not furnishing or prepared on demand to furnish a proper and sufficient supply of

Power to
local autho-
rity to supply
water in case

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Company
fails to
supply.

water in accordance with the provisions of this Act in any parish within the water limits the local authority of the district in which such parish is situate may provide a supply in the whole or any part of their district within the water limits in accordance with the provisions of the Public Health Act 1875 or any company body or person may apply for an Act of Parliament or Provisional Order for the purpose of supplying water in any part of such district not sufficiently supplied by the Company as if in either case there were no company authorised by this Act to supply water therein. If any difference shall arise between the Company and any such local authority company body or person as to the sufficiency of the supply of water in any part of such district such difference shall be settled on the application of either party by the Board of Trade.

For protec-
tion of cor-
poration of
Chichester.

23. Nothing contained in the section of this Act whereof the marginal note is "For protection of Westhampnett Rural District Council" or in any other section of this Act shall be deemed in any way to repeal or restrict the powers of the corporation with respect to the supply of water within any part of their limits of supply under the Chichester Corporation Water Act 1897 or to confer upon the Company or any local authority (in case of failure by the Company to afford a supply) any power of supplying water within those limits save so far as is expressly provided by the agreement set forth in the schedule to this Act.

Power to
owners to
grant ease-
ments &c.

24. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which parties other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Purchase of
lands by
agreement.

25. The Company may by agreement take purchase and hold for the general purposes of their undertaking any lands in or near the area included in the water limits not exceeding in the whole ten acres in extent or any easement (not being an easement or right of water in which other parties than the grantors have an interest) in over or under any such lands. Provided that the Company shall not sink drive construct or use

any well drift or adit upon any such lands or create or permit any nuisance thereon and that no works or buildings shall be erected on such lands except such as are required for or are connected with the purposes of the Company's undertaking. A.D. 1907.

26. The Company shall at the request of the owner or occupier of any dwelling-house or part of a dwelling-house entitled under the provisions of this Act to demand a supply of water for domestic purposes furnish to such owner or occupier a sufficient supply of water for such domestic purposes at rates not exceeding the rates per annum herein-after specified (that is to say):—

Rates at which water is to be supplied for domestic purposes.

Where the rateable value of the premises so supplied does not exceed five pounds per annum the sum of eight shillings and eightpence per annum:

Where such rateable value exceeds five pounds but does not exceed twenty pounds per annum the rate of ten pounds per centum per annum upon such value:

Where such rateable value exceeds twenty pounds but does not exceed forty pounds the rate of nine pounds per centum per annum upon such value:

Where such rateable value exceeds forty pounds but does not exceed sixty pounds the rate of eight pounds per centum per annum upon such value:

Where such rateable value exceeds sixty pounds but does not exceed eighty pounds the rate of seven pounds per centum per annum upon such value:

Where such rateable value exceeds eighty pounds the rate of six pounds per centum per annum upon such value:

Provided always that the Company shall not be compellable to afford a supply of water for domestic use to any such house for any less sum than eight shillings and eightpence per annum. Provided further that the Company shall not be entitled in any case to demand for the water rate for any house or part of a house included in any division of the above scale a greater sum of money than they would be entitled to demand if such house or part of a house were of just sufficient rateable value to bring it within the next division of the said scale relating to premises of a higher rateable value whereon a lower rate per centum per annum is chargeable.

When the water rate is chargeable on the rateable value of a part only of any premises entered in the valuation list or poor

A.D. 1907. — rate (such part not being separately assessed to the rate for the relief of the poor) such rateable value shall be a fairly apportioned part of the rateable value of the whole premises ascertained as aforesaid the apportionment in case of dispute to be determined by two justices.

For the purposes of this section the rateable value shall be the net rateable value, as ascertained by the valuation list in force at the commencement of the quarter in which the water rate accrues or if there is no such list in force by the last rate made for the relief of the poor.

In addition to the rates computed as above specified the Company may demand and take for the supply of water—

For every watercloset beyond the first (for which no additional charge shall be made) on any premises within the water limits a sum not exceeding five shillings per annum and for every fixed bath capable of containing not more than fifty gallons a sum not exceeding seven shillings and sixpence per annum and for every fixed bath capable of containing more than fifty gallons such sum as the Company may think fit such additional sums to be paid quarterly in advance and to be recoverable in all respects with and as the water rate.

Charges for supply of water for other than domestic purposes.

27.—(1) The Company may supply water within the water limits for purposes other than domestic purposes by meter or otherwise and on such terms pecuniary or otherwise and subject to such conditions as shall be agreed on between the Company and the person requiring the supply and the moneys payable for the supply shall be water rates and recoverable accordingly.

(2) The Company shall not be bound to supply with water otherwise than by measure any building used partly by the same occupier as a dwelling-house and partly as a shop or warehouse or for any trade or manufacturing purpose for which water is required or any swimming bath or hydropathic institution.

(3) Where a water supply to a farmhouse is used for farming purposes the Company may require that the supply for farming purposes shall be taken by meter but nothing in this section shall authorise the Company to refuse a supply of water for domestic purposes to a farmhouse at the ordinary rate calculated on the rateable value thereof.

(4) The Company shall not charge a higher rate than two shillings per thousand gallons for any supply by meter given under this section.

(5) No person shall be entitled to a supply of water for other than domestic purposes if such supply would interfere with the sufficiency of the supply of water for domestic purposes. A.D. 1907.

28. Notwithstanding anything contained in this Act the following provisions for the protection of the Westhampnett Rural District Council (herein-after in this section referred to as "the council") shall unless with the previous consent in writing of the council be binding and obligatory upon the Company and shall apply and have effect:—

For protec-
tion of West-
hampnett
Rural Dis-
trict Council.

- (1) The charge for water supplied by the Company for public purposes under the provisions of this Act as defined by section 37 of the Waterworks Clauses Act 1847 shall not exceed one shilling per one thousand gallons:
- (2) The Company shall fix maintain renew and keep in order at their own expense upon the mains and contributory pipes in the rural district of the council hydrants for fire and other purposes of such pattern and in such positions upon such mains or pipes as may be approved of by the council the number of such hydrants being fifteen in the parish of Selsey and nine in each of the other parishes in the rural district through which such mains or pipes may pass Any further hydrants which the council may consider necessary as the district develops to be paid for and maintained by the council in accordance with the provisions of section 40 of the Waterworks Clauses Act 1847:
- (3) The period within which the council as the local authority may supply water in case the Company fail to afford such supply within the limits of this Act shall be three years from and after the passing of this Act:
- (4) The provisions of sections 37 38 39 and 40 of the Waterworks Clauses Act 1847 shall as amended by this section apply to the council as if they were the town commissioners referred to in such sections and to the Company:
- (5) The notice required to be given by section 30 of the Waterworks Clauses Act 1847 and the plan to be approved under section 31 of that Act before breaking up any streets for the purpose of laying pipes shall with respect to any streets roads or ways under the control or management of the council be given to and approved by the surveyor to the said council for

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the district in which such streets roads or ways are situated and the work referred to in such notice and plan shall be executed to the reasonable satisfaction of such surveyor whose proper expenses in connexion therewith shall be paid by the Company.

For protec-
tion of Sel-
sey-on-Sea
Limited.

29. For the protection of Selsey-on-Sea Limited (in this section referred to as "the limited company") the following provisions shall unless otherwise agreed between the Company and the limited company apply and have effect (that is to say):—

(1) Notwithstanding anything in this Act contained the Company shall not supply water to or on any of the properties or premises in the parishes of Selsey Sidlesham and North Mundham belonging to the limited company without the consent in writing of that company nor shall the Company without such consent as aforesaid lay down any pipes or apparatus in any streets belonging to the limited company or exercise in respect of any such streets as aforesaid any of the powers of the section of this Act the marginal note whereof is "Power to lay pipes in streets not dedicated to public use":

(2) In the event of the limited company promoting a Bill in the session of Parliament of 1908 for the purpose of supplying with water the portions of the aforesaid parishes of Selsey Sidlesham and North Mundham belonging to them and for obtaining the necessary powers for such purpose the Company will not oppose such Bill except for the purpose of obtaining any necessary protection for their pipes and other works laid down in the streets.

Contracts for
supplying
water in
bulk.

30. The Company may enter into and carry into effect agreements with any local authority company or persons for the supply of water beyond the water limits to any such authority company or persons respectively and on such terms and conditions and for such period as may be agreed upon Provided that such supply shall not be given except with the consent of any company or person supplying water under parliamentary authority within the district to be supplied and of the local authority of that district nor if and so long as such supply would interfere with the supply of water for domestic purposes within the water limits:

Provided also that such supply shall not be given within any parish which is beyond the water limits but within the limits of supply of the corporation under the Chichester Corporation Water Act 1897 without the consent in writing of the corporation.

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31. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any period less than a quarter of a year the owner instead of the occupier shall if the Company so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner. Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate.

Rate payable by owners for small houses.

32. The Company shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

Company not bound to supply several houses by one pipe.

33. A notice to the Company from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company.

Notice of discontinuance.

34.—(1) The Company may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connexion disconnexion alteration and repair of the pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this section referred to as "water fittings") to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination.

Byelaws for preventing waste &c. of water.

(2) Such byelaws shall apply only in the case of premises to which the Company is bound to afford and does in fact afford or is prepared on demand to afford a constant supply and the provisions with respect to byelaws contained in sections 182 to 186 of the Public Health Act 1875 shall apply to all byelaws so made as if the Company were a local authority within the meaning of those sections.

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(3) In case of failure of any person to observe such byelaws as are for the time being in force the Company may if they think fit after twenty-four hours' notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Company as the water rates in respect of the premises are recoverable.

Company to
keep meters
in repair.

35. The Company shall at all times at their own expense keep all meters or other instruments for measuring water let by them for hire to any consumer in proper order for correctly registering the supply of water and in default of their so doing the consumer shall not be liable to pay rent for the same during such time as such default continues. The Company shall for the purposes aforesaid have access to and be at liberty to remove test inspect and replace any such meter or other instrument at all reasonable times.

Register of
meter to be
evidence.

36. Where the Company supply water by measure the register of the meter or other instrument for measuring water shall be *primâ facie* evidence of the quantity consumed and in respect of which any water rate is charged and sought to be recovered by the Company. Provided always that if the Company and the consumer differ as to the quantity consumed such difference shall be determined upon the application of either party by a court of summary jurisdiction who may also order by which of the parties the costs of the proceedings before them shall be paid and the decision of such court shall be final and binding on all parties.

Power for
Company
to supply
materials.

37. The Company may if requested by any person supplied or about to be supplied by them with water provide and furnish to him and from time to time repair or alter but shall not manufacture any such meters pipes valves cocks baths soil-pans waterclosets boilers cisterns fountains filters fittings apparatus and receptacles as are required or permitted by their regulations and may provide all materials and do all work necessary or proper in that behalf and the reasonable charges of the Company in providing such materials and executing such work shall be paid by the person requiring the same.

Power to
remove
meters and
fittings.

38. The Company by their agents or workmen after forty-eight hours' notice in writing under the hand of the secretary or

some other officer of the Company to the occupier or if there is no occupier then to the owner or lessee of any house building or land in which any pipe meter or fitting belonging to the Company is laid or fixed and through or in which the supply of water is from any cause other than the default of the Company discontinued for the space of forty-eight hours may enter such house building or land between the hours of nine in the morning and four in the afternoon or at any other time with the authority in writing of a justice for the purpose of removing and may remove every such pipe meter and fitting repairing all damage caused by such entry or removal. A.D. 1907.

39. Before any person connects or disconnects any meter by means of which any of the water of the Company is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Company of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Company and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings. Notice to Company of connexion or disconnection of meters.

40. Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter instrument or fittings belonging to the Company or who fraudulently alters the index to any meter or prevents any meter from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Company shall (without prejudice to any other right or remedy for the protection of the Company) be liable to a fine not exceeding five pounds and the Company may in addition thereto recover the amount of any damage by them sustained and in any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Company or has fraudulently altered the index to any meter or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Company the Company may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by such meter of the quantity of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Company by the person so offending and may be Injuring meters.

A.D. 1907. — recovered by them as water rates are recoverable The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Company when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *primâ facie* evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

Power to lay pipes in streets not dedicated to public use.

41. The Company may on the application of the owner or occupier of any premises within the limits of this Act abutting on or being erected in any street laid out but not dedicated to public use supply such premises with water and may lay down take up alter relay or renew in across or along such street such pipes and apparatus as may be requisite or proper for the furnishing such supply and the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply *mutatis mutandis* to and for the purposes thereof.

Costs of Act.

42. All costs charges and expenses of and incidental to the preparing for obtaining and passing this Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULE referred to in the foregoing Act.

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tamp.

Ten
illings.

ARTICLES OF AGREEMENT made the 25th day of April 1907 between THE MAYOR ALDERMEN AND CITIZENS OF THE CITY OF CHICHESTER of the one part and FRANCIS HILL TOD of 64 Wool Exchange in the City of London Chartered Accountant ALFRED STANSFELD of 15 Studd Street Islington in the County of London Gentleman HENRY WILLIAM INGRAM of 186 Elsenham Street Southfields in the County of Surrey Gentleman LUTHER CLAYTON of Sidlesham in the County of Sussex Esquire EDWIN RICHARD PAINTER of St. Stephen's Chambers Telegraph Street in the City of London Chartered Accountant WILLIAM BENTHAM MARTIN of 64 Outer Temple in the County of London Esquire and EDWARD OXENFORD PRESTON of 4 Tokenhouse Buildings in the City of London Esquire as trustees for and on behalf of a company to be incorporated as herein-after mentioned (herein-after called "the Trustees") of the other part.

WHEREAS a Bill promoted by certain of the Trustees intituled "A Bill " to incorporate the Selsey Water Company and to enable that " Company to supply water in certain parishes in the county of Sussex" has been introduced into Parliament under the short title of the Selsey Water Bill (herein-after called "the Bill") and is now pending in the House of Lords:

And whereas the Bill seeks amongst other things to authorise the Company proposed to be incorporated by the Bill (herein-after called "the Company") to supply water for domestic trade and other purposes within amongst others the parishes of Selsey Sidlesham and Hunston in the county of Sussex and to exercise in respect of such supply the powers in connexion therewith proposed to be conferred upon the Company by the Bill:

And whereas the said parishes are places within which the mayor aldermen and citizens of the city of Chichester (herein-after called "the Corporation") are authorised by the Chichester Corporation Water Act 1897 to supply water for all of such purposes and it is sought by the Bill to deprive the Corporation of those powers and to transfer them to the Company:

And whereas the Corporation have deposited in the Private Bill Office of the House of Lords a petition praying to be heard against the Bill:

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And whereas to obviate opposition on the part of the Corporation and for and in respect of the other purposes and considerations herein-after appearing the said parties have agreed to enter into the agreement herein-after contained :

Now these presents witness as follows:—

1. The Company shall take from the Corporation at the price and on the terms and conditions contained in this agreement and the Corporation subject to and in accordance with the provisions of this agreement shall furnish to the Company in bulk at the point herein-after described all such quantity of water as the Company may from time to time be required to supply in fulfilment of their statutory obligations and such reasonable quantity of water as the Company may from time to time require for domestic trade public and all other purposes within the limits of supply of the Company :

Provided always that the Corporation shall not be bound to supply to the Company during any one day from midnight to midnight a quantity of water exceeding by more than fifty per cent. the average quantity per day supplied by the Company during the year ended on the last preceding usual quarter day.

2. The Company during the continuance of this agreement will not without the consent in writing of the Corporation first had and obtained take a supply of water from any company body or person other than the Corporation or sink any well drive any adit or construct any works for securing a supply of water other than distribution works or apply for any statutory power in that behalf Provided that the consent of the Corporation shall not be unreasonably withheld in the event of the Company desiring to obtain or provide a temporary supply of water for any period during which the Corporation may be unable to supply water in accordance with the terms of this agreement.

3. The Corporation shall furnish such supply of water as aforesaid to the Company at a convenient place to be selected by the Corporation in Stockbridge Road at or near the point where the boundary of the city of Chichester crosses that road and shall bring their main of not less than 5 inches in internal diameter from Southgate along Stockbridge Road to the place so selected and shall commence to afford the said supply to the Company at such time as the Company may by one month's notice in writing require not being earlier than one month after the Company shall have laid and completed ready for use a line of pipes from such place as aforesaid to the water tower or service reservoir hereinafter mentioned in the parish of Selsey and shall in the said parish at or near the town of Selsey have constructed and completed ready for use the water tower or service reservoir herein-after described and shall have connected the said line of pipes with the said water tower or reservoir.

4. The water tower or reservoir to be provided as aforesaid by the Company shall be placed constructed and if extended at any time maintained so that the level of the water in either when filled to the maximum capacity shall not exceed the height of eighty-five feet above the level of Ordnance datum and shall be in the first instance constructed and from time to time thereafter extended so as to hold an amount of water equivalent to the maximum amount of water required in one day for all purposes of the district for the time being supplied by the Company.

5. The Corporation shall furnish such supply of water as aforesaid to the Company at the point aforesaid in Stockbridge Road at such constant pressure as to admit of such water flowing through the said line of pipes of the Company into the said water tower or reservoir so as to fill the same subject to the usual daily or hourly variations Provided that the Company shall so lay and at all times maintain and renew the said line of pipes and its connexions with the said main of the Corporation and the said water tower or reservoir as to convey such water into the said water tower or reservoir without undue loss of Pressure having regard to what at the time is the volume of water so to be conveyed it being agreed that in the first instance the said line of pipes shall be five inches in internal diameter and in the event of a dispute arising between the Corporation and the Company as to an alleged deficiency in pressure the arbitrator appointed as herein-after provided shall have regard to the diameter and condition of the said line of pipes of the Company.

6. The Company shall at their own expense provide a meter of such type dimensions and design as shall be reasonably approved of by the Corporation for the measurement of the water supplied as aforesaid by the Corporation to the Company and shall to the reasonable satisfaction of the Corporation fix the same at the point of junction between the said main of the Corporation and the said line of pipes of the Company in such position and with such air and sluice valves valve boxes and hydrants pressure gauges and other subsidiary works and appliances as may be reasonably required by the Corporation and shall at their own expense at all times efficiently maintain and renew such meter and works to the like satisfaction and the Corporation or any of their officers or servants shall be entitled at all reasonable times to have access to and to inspect the said meter and works The Company shall be entitled to fit a reflux valve at or near the said meter and a by-pass to be controlled only by the Corporation and to be used only when the meter is out of use or being repaired.

7. The water to be supplied in bulk as aforesaid by the Corporation to the Company shall be pure and wholesome water within the meaning of section 35 of the Waterworks Clauses Act 1847 and of good potable quality.

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8. The price to be paid by the Company to the Corporation in respect of such supply of water in bulk by the Corporation to the Company as aforesaid shall be calculated in respect of each quarter at the rate of sixpence per thousand gallons of the water recorded by the aforesaid meter as supplied to the Company up to the average quantity of 100,000 gallons per day so supplied such average being arrived at and calculated on the whole supply for the quarter and the day being taken as from midnight to midnight And where the total quantity of water so recorded as being supplied in bulk during any quarter shall exceed such average of 100,000 gallons per day the price shall be calculated in respect of each thousand gallons in excess of such average of 100,000 gallons per day at such rate not exceeding sixpence as shall be agreed upon between the Corporation and the Company or as failing agreement shall be settled from time to time by arbitration on the demand of either party.

9. The said payments shall be made by the Company to the Corporation four times annually and shall be payable within 28 days after the meter has been taken or read and it shall be taken or read on the usual quarter days (being the 25th day of March 24th June 29th September and 25th December in each year) or as soon after as conveniently may be and at a convenient hour and the said payments shall be calculated in respect of the amount of water which is recorded by the said meter as having been supplied by the Corporation to the Company up to such taking or reading of the meter and if any such sum so due from the Company to the Corporation shall remain unpaid for 28 days after any of the said readings as aforesaid the Corporation shall be entitled without further or other notice to recover the same from the Company by process of law in any court of competent jurisdiction and interest shall be paid by the Company to the Corporation at the rate of £5 per centum per annum for such time as may elapse between the dates at which any of such sums are paid and the dates at which the same became payable.

10. All payments due from the Company to the Corporation in respect of water supplied in bulk by the Corporation to the Company under and in pursuance of the provisions of this agreement shall be treated by the Company as items of working expenses and as outgoings proper to be made before payment of interest on mortgages bonds or debenture stock or the determination of profits available for dividend and shall be dealt with by the Company and accounted for as such.

11. If at any time the revenue received by the Company in respect of the distribution of the water supplied in bulk by the Corporation to the Company is insufficient to provide for payment as aforesaid to the Corporation in respect thereof the Company shall so far as reasonably practicable at the first available opportunity revise and adjust their rates and charges for water supplied by them for domestic purposes and purposes other than domestic so as to produce such increased revenue

as to enable the Company to discharge any debt then due by them to the Corporation under this agreement and prevent so far as practicable the recurrence of any such deficit in the future. A.D. 1907.

12. The registering of the said meter provided to be fixed by the Company as aforesaid shall be conclusive evidence of the amount of water so supplied in bulk by the Corporation to the Company in any quarter and the said meter shall be read by an official of the Corporation and the Company or their representatives shall be entitled to be present at such reading and the said meter shall be tested as to the accuracy of its recording the amount of water so supplied in bulk by the Corporation to the Company at the expense of the Company every twelve months in such way or by such person as may be agreed between the Corporation and the Company or failing agreement as shall be settled by arbitration as herein-after provided and the Corporation shall have the right at the like expense to require the said meter at any time to be similarly tested but so that if on any requisition of the Corporation the said meter shall be tested and found to be accurate the expenses of the Company in the matter shall be paid by the Corporation. In the event of the said meter being proved to register erroneously such erroneous registration shall be deemed to have arisen at the beginning of the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter and such allowance shall be made by the Corporation to the Company or by the Company to the Corporation as is represented by the amount overcharged or undercharged to the Company on applying to the quantity of water supplied in bulk by the Corporation to the Company for the period during which the meter is so to be deemed to have been registering erroneously the ascertained ratio of error of the meter.

13. In the event of drought entailing a limitation on the supply of water in the city of Chichester the Company shall at the request of the Corporation take such steps as may be reasonably practicable to prevent during the period of the drought any undue waste of water in the district supplied with water by the Company.

14. The Corporation shall indemnify the Company against and save them harmless from all penalties losses expenses claims demands or liability made against or incurred by the Company as a result of failure on the part of the Corporation to furnish to the Company a supply of water in accordance with the provisions of this agreement and in addition thereto in the event of there being any failure to supply by the Corporation or of the water supplied by the Corporation being unfit for drinking purposes the Corporation for each day or part of a day during which such failure or unfitness shall continue shall pay to the Company by way of liquidated damages the sum of two pounds in respect of every day on which such failure or unfitness occurs. Provided always that the provisions of this article shall not extend or apply to any such failure or unfitness which shall be due to force

A.D. 1907. majeure exceptional and unforeseen drought or any other inevitable or unavoidable accident or cause And provided further that the Corporation shall be entitled temporarily to discontinue such supply of water in bulk to the Company for the purpose of executing any necessary repairs to their mains or works which however shall be executed with all reasonable and proper expedition and the Corporation shall so far as reasonably practicable by means of temporary works or otherwise ensure the continuance of such supply to the Company during such repairs.

15. The Company shall indemnify the Corporation against and save them harmless from all claims demands and liabilities in respect of or in connexion with the supply of water in bulk by the Corporation to the Company or the supply thereof by the Company or the use thereof within the district supplied by the Company not being the claims demands and liabilities from and against which under the provisions of the immediately preceding article of this agreement the Corporation are to save harmless and indemnify the Company.

16. The Company shall not without the consent of the Corporation assign their rights under or interest in this agreement and in the event of the Company going into liquidation or a receiver being appointed over its undertaking and any money payable to the Corporation for water supplied under this agreement after the commencement of the liquidation or the appointment of the receiver as the case may be being in arrear for more than six months the Corporation shall be at liberty to terminate this agreement.

17. If at any time hereafter any dispute difference or question shall arise between the Company and the Corporation touching the construction meaning or effect of this agreement or any of the provisions hereof or the rights or liabilities of the Corporation or the Company hereunder then every such dispute difference or question shall be determined in pursuance of the Arbitration Act 1889 by the arbitration of a single person to be agreed upon between the Corporation and the Company or failing such agreement to be appointed on the application of either party by the President for the time being of the Institution of Civil Engineers and the decision of such person shall be final and binding on the Corporation and the Company.

18. During the continuance of this agreement the Corporation shall not be entitled to exercise any of their powers under the Chichester Corporation Water Act 1897 to supply other than to or at the request of the Company water within the said parishes of Selsey Sidlesham and Hunston or any part thereof but save as aforesaid nothing herein contained shall be deemed to repeal abrogate or suspend any of the powers rights or privileges of the Corporation.

19. If the Company do not within a period of three years after the passing of the Bill complete ready for use the line of pipes and the water tower or service reservoir herein-before referred to and to be

constructed by them the Corporation may if they think fit by notice in writing to the Company at any time determine this agreement. A.D. 1907.

20. Upon the passing of the Bill the Trustees shall be discharged from all liability under this agreement and the Company shall be deemed to be a party thereto in their place.

In witness whereof the Corporation have caused their corporate seal to be hereunto affixed and the Trustees have hereunto set their hands and seals the day and year first above written.

Sealed with the common seal of the mayor aldermen and citizens of the city of Chichester by order of the council in the presence of and attested by

J. W. LOADER COOPER

Town Clerk.



W. L. GIBBINGS
Mayor.

Signed sealed and delivered by the above-named Francis Hill Tod Alfred Stansfeld Henry William Ingram Edwin Richard Painter William Bentham Martin and Edward Oxenford Preston in the presence of

ARTHUR HENRY BROWN

4 Tokenhouse Buildings E.C.
Secretary.

FRANCIS H. TOD.

L.S.

ALFRED STANSFELD.

L.S.

HENRY W. INGRAM.

L.S.

LUTHER CLAYTON.

L.S.

E. R. PAINTER.

L.S.

Signed sealed and delivered by the above-named Luther Clayton in the presence of

CHARLES E. BAKER

54 Parliament Street

Westminster

Solicitor.

W. B. MARTIN.

L.S.

E. O. PRESTON.

L.S.

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